Terms and Conditions

Green Cycle Platform Co.Terms & Conditions

DEFINITIONS:

'User' – Any individual authorized to use the Green Cycle Platform site on behalf of the company by whom they are employed. This individual must have authority to bind the company. May otherwise be referred to as the 'Administrator'.

'Green Cycle Platform' – Green Cycle Platform Limited company registered in Kuwait MOCI of the Green Cycle Platform online marketplace.

'Recycler Company or Scrap Manager' – The authorized User who is registered on the Site for the purposes of Receiving or purchasing material or otherwise the company who they are employed by.

'Waste Submitter or Provider' – The authorized User who is registered on the Site for the purposes of Providing material or otherwise the company who they are employed by.

'Broker' – An individual or company who uses the site to facilitate transactions between Submitter and Receiver of waste, but does not at any point own the material.

'The Platform' – The platform supplied by Green Cycle Limited Company facilitating the Submission and Receiver of recyclable waste material.

'User Number' – The individual number assigned to each User following completion of the registration process.

'Load' – The individual portion of material subject to submit to each individual receiver.

'Customer Dashboard' – The collection of data available to each user, including their listings, offers, messages, recently viewed, purchase history, 'may also like' and material that will be available soon.

1. **A) USE OF THE Green Cycle Platform**
2. **ABOUT Green Cycle Platform**

- Green Cycle is a platform for sharing waste between waste source (provider) with waste receiver (Collector). Considering all types of waste as mentioned in the website. Platform allows users to list, sell, offer and buy or receive waste on a 24/7 basis.
- At no point does Green Cycle have ownership of any of the materials listed. Green Cycle's involvement is limited to being a facilitator for the transactions of waste between Receiver (Buyers) and Submitter (Sellers) on the Platform.
- **Whilst Green Cycle encourages all parties to provide entirely accurate information, Green Cycle has no control over, and does not guarantee the existence, quality, safety or legality of, items advertised; the truth or accuracy of**

users' content or listings, the ability of Sellers to sell items, the ability of Buyers to pay for items or that a buyer or seller will actually complete a transaction or return a material where requested. Therefore, both parties are the main responsible on what they provide and what they receive.

2. **REGISTERING INTEREST**

- If the User wishes to become either a Receiver (Buyer) or a Submitter (Seller) on the platform, they will be required to provide the information marked as a required field; however, it is desirable that the User provides as much information as possible to assist in the registration process
- The User is directed to the Privacy Policy to learn more about the protection of their data.
- During the registration process, you must provide a valid e-mail address which is not offensive or misleading, does not offend common decency and does not infringe upon the copyright, trademark or other rights of third parties.
- By registering the company that they represent, the User warrants that they have the authority to act for that company and enter the company into situations whereby the company are contractually bound. Green Cycle will bear no liability for any loss or damage where a User does not have authority to act on behalf of the company that they represent.
- Once Users have entered all required information in order to register, Green Cycle will validate the information provided in order to register the account and provide a User ID. Green Cycle will endeavor to complete the validation process in no more than 24 hours however this is not guaranteed. Any loss caused by delays to the validation process will not be at the fault of Green Cycle and under no circumstances will Green Cycle be liable for the same.
- By registering to use the Platform, the User is agreeing to these Terms and Conditions and Green Cycle's Privacy Policy.

3. **USING WASTETRADE**

- Once the User's account has been validated, they will then be able to list items or bid on Seller's listings. Under no circumstances should User accounts be transferred to another party and the User account may only be used by the individual that registered the account and has express authority to contractually bind the company that they work for.
- We reserve the right to temporarily or permanently disqualify and/or disable any User account when a User has breached (or intend to breach) these terms and conditions.
- A User may also be disqualified or their account may be disabled temporarily or permanently if such action will protect the rights of other users of our site.
- A non-exhaustive list of circumstances which may lead to an account being deactivated or disabled is as follows:

1. A User provides any false or misleading information.
2. A User lists hazardous or non-recyclable material
3. A User and other bidders; agree, discuss or otherwise co-ordinate offers in an attempt to increase the overall possibility of winning above what would otherwise be the case if you acted separately.
4. A User breaches or circumvents any laws or third-party rights or otherwise infringes a third parties copyright or trademark.
5. A User posts false, inaccurate, misleading, defamatory, or libellous content;
6. A User transfers their Green Cycle account and User ID to another party;
7. A User distributes viruses or any other technologies that may harm Green Cycle, or the interests or property of Platform users;
8. A User uses any robot, spider, scraper or other automated means to access our Services for any purpose;
9. A User interferes with the working of Green Cycle Services, or imposes an unreasonable or disproportionately large load on our infrastructure;
10. A User infringes the copyright, trademark, patent, moral, database or other intellectual property rights that belong to or are licensed to Platform. Some, but not all, actions that may be infringement are reproducing, performing, displaying, distributing, copying, reverse engineering, decompiling, disassembling, or preparing derivative works from content that belongs to Green cycle or someone else;
11. A User infringes any Intellectual Property Rights that belong to third parties affected by the User's use of the Services or posts content that does not belongs to them;
12. The User harvests or otherwise collects information about users without their consent;
13. The User circumvents any technical measures that Green Cycle uses to provide the Services.

- Whilst Green Cycle reserves the right to disqualify/cancel accounts, it is not the responsibility of Green Cycle to monitor misuse of the site, and Green Cycle will not be liable for loss to another User where they have not removed an account that has previously misused the site. The onus is instead on all Users to use the site responsibly and honestly at all times.
- Green Cycle allows the registration of third-party brokers using the Site in order to facilitate deals; however, the Brokers are subject to the provisions at clause 5.
- Insofar as the User uses the Platform as a Supplier, the User is subject in particular to the following obligations:
    1. The User must be authorized to offer the offered waste.
    2. The User must be able to transfer the legal ownership of the offered wastes free of encumbrances of any kind.
    3. The information on the waste offered which the User communicates on the Platform, must be complete and correct and must not be misleading.
- Additionally, we reserve the right to vary or terminate all or part of our Services and/or not provide all or part of our Services to anyone for any reason and/or period of time, at our discretion.

- We may cancel unconfirmed accounts or accounts that have been inactive for a long time or modify or discontinue our Services.
- By electing to register onto the site, the User agrees to the use of 'bots' in addition to the receipt of notifications regarding but not limited to new listings and promotions.

4. **LISTING CONDITIONS**
   - Waste provider must upload photographs of the material that they are submitting. These photographs should be of high resolution and the quality of the material must be clearly visible and an accurate representation of the material being sold.
   - Photographs should specifically be of the material that is being sold and under no circumstances should a Seller upload photographs of a different load.
   - A waste provider should accurately describe the load that is being provided including the specific material, weight and etc.
   - A non-exhaustive list of prohibited listings is that which include:

- Images, videos or text copied from websites or internet searches;
- Scans or text copied from catalogues or advertisements;
- Hazardous and/or non-recyclable and/or recyclable waste mixed with non-recyclable waste.
- Poor-quality videos or images that are blurry, undefined or distorted;
- Illegal or explicit content;
- Offensive content that promotes or glorifies hatred, violence or discrimination;
- Photographs of a load that is not the load being sold.

   - Green Cycle requires all provider to abide by the listing conditions of this section. Where a receiver suffers loss due to a failure of the provider to abide by the Listing Conditions or accurately represent the load, Green Cycle will not be held liable and compensation for any loss should be sought directly from the Seller.

INTERNATIONAL USERS

- Many of Green cycle's services are accessible internationally however all Users are accountable to these Terms & Conditions which are governed by the laws of England & Wales.
- Where a User sells a Load to an international Receiver or an international Provider receives or purchases a Load, it is the responsibility of the individual parties to ensure the goods are transported in line with the legislation and policies of the relevant countries.

COMMUNICATIONS BETWEEN Waste Receiver (BUYER) AND Provider (SELLER)

- Initial communications between two parties shall be via Green Cycle Platform. Both are required to communicate solely through the platform in respect of any transactions for a period of time, which is subject to review at Green Cycle

discretion. Should Green cycle have reason to believe that parties are communicating outside of the platform within this period they shall have the right to prevent either or both parties from using the platform in future and prevent both parties from using the site to list items in future.

TERMINATION

- In relation to the registration and use of a User profile on the Site, 'Termination' refers to Green cycle's decision to remove the User's profile to the website.
- Termination shall not affect or prejudice any right to damages or other remedy which Green Cycle may have in respect of the event giving rise to the termination or any other right to damages or other remedy which Green Cycle may have in respect of any breach of these terms which existed at or before the date of termination.

HAULAGE & TRANSPORTATION OF GOODS

DEFINITIONS:

'**Buyer/Seller/User'** – Any future reference to 'Buyer/Seller/User' refers to whichever party engaged Green Cycle to facilitate the transportation services, inclusive of Brokers.

'Hauliers/Service Providers' – Haulage companies who register with Green Cycle for the provision of transportation services.

1. **Introduction**

- These Terms and Conditions are designed for Haulage companies who wish to bid for the provision of haulage services on the platform of waste materials which have been the subject of transactions on the website, in addition to both parties on the platform who require haulage services to transport loads.
- By accessing or using the Platform, you agree to be bound by these Terms. If you do not agree with these Terms, please do not use the Platform.

Engagement

- To use the Platform, All Service Providers in the field of waste sectors must register and create an account. The following details in order to register and use the platform:

- Company Name
- Company Number
- Locations for haulage services
- Key Company Contact (name, contact details and position in the business)
- Makes and Models of lorries used and details of emissions.
- Provision of copies of all requisite licences and documentation for haulage services
- In respect of how Green Cycle use this data, please refer to our Data Protection and Privacy Policy available on our website.

- You represent and warrant that all information provided during registration is accurate and current.

3. **Limitation of Liability**
   - Green Cycle is not responsible for the functionality, punctuality or compliance with legislation and secondary regulation of any of services providers using Green Cycle, and Green Cycle shall not be liable for any losses to (submitter) Sellers or (receiver) Buyers which are a result of a failure of the Haulier selected.
   - Green Cycle has no liability for any failure of the Buyer or Seller to make themselves available or adhere to any arrangements made for the transfer of the material. Whilst Green Cycle will attempt to ensure that arrangements for the collection and delivery are adhered to, it is accepted that they do not have ultimate control over the parties purchasing/selling goods and cannot therefore guarantee the effectiveness of every collection or delivery.
   - The Platform is provided “as is”, without any guarantees or warranties of any kind.
   - We do not guarantee the accuracy, completeness, or usefulness of any information on the Platform.
   - We are not liable for any loss or damage resulting from reliance on information found on the Platform or the performance or non-performance of Services.

4. **Documentation Requirements & Sub-Contracting**
   - Any service provider engaged by Green Cycle or registering to use the platform undertakes that they have the relevant Waste Carrier licence and a copy will be provided to Green Cycle to hold on file prior to undertaking any collections of goods on behalf of the company. The Haulier must provide Green Cycle with translated licences where they are based outside of the Kuwait.
   - Any Haulier engaged by Green Cycle undertakes that they have appropriate cargo insurance which is effective at the time that the transportation is to take place.
   - Any Haulier engaged will comply with providing any documentation regarding the transportation process required for compliance under the current legislation and regulations in the relevant countries.
   - Any Haulier engaged may subcontract or outsource any transportation. However, the Haulier has a responsibility to ensure that any sub-contracting party they engage complies with all statutory and regulatory requirements for the transportation of the goods, including holding the required carrier licences. Green Cycle will not be responsible for any 3rd party charges incurred when haulage is subcontracted.
   - The Haulier or any party they engage must comply with all export regulations and requirements and be able to undertake the transportation to the Buyer.

5. **Collection of Goods**
   - Once the agreement achieved by two parties, the facilitation of transport can be done by the receiver, the times for collection of the materials will be shown on the Customer Dashboard.
   - As details of the collection are specified and refined, such details will be shown on the Customer Dashboard. The User should note that details regarding the transport of materials are subject to change as discussions are undertaken with the selected Haulier. It is therefore the responsibility of the receive to ensure they are up to date with such detail by continually checking the Customer Dashboard.
   - Where a User fails to ensure they are up to date with the latest details for the collection of the materials and misses the collection slot, Green Cycle will not be liable for transportation fees sought by the haulier.
   - Green cycle is not responsible to pay any haulier cost where there is no effective collection of Goods from the waste submitter or receiver at the fault of the Haulier.
   - Any costs for delays during the loading process will be on both parties and they can arrange between each other.

- The responsibility for the safe loading of the goods in line with current regulations and legislation falls upon the receiver and the Haulier.
- The Haulier must ensure all relevant paperwork for the transportation is present.
- A copy of the packing list will be provided upon departure from the collection location
- The Haulier must ensure the confidential and safe storage of any compliance paperwork during the transportation process.
- The Haulier and receiver must ensure that they abide by all site safety rules and are responsible about type of materials of waste that are receiving. Green cycle is not responsible in materials provided by waste submitter as well as the materials are taken and transported by the receiver and haulier.
- Where the Haulier does not show up on an assigned collection day, or otherwise fails to perform any of their obligations, Green cycle will not be liable for any loss to the waste submitter and waste receiver.

6. **Transportation**
   - The responsibility for the safe transport of the Goods upon collection is with the transport provider, usually the waste receiver.
   - The haulier should provide updates on the transportation and notify Green Cycle of any delays over 3 hours.
   - Upon any issues of compliance or regulatory matters regarding the transport or exportation of the goods, Green Cycle should be notified immediately, and the Haulier must maintain an accurate record and evidence where possible, including retaining all relevant paperwork.
   - Green Cycle shall not be liable for any demurrage costs and such costs must be evidenced and reported to Green Cycle with photographic evidence, including a

copy/photograph of the weighbridge ticket, as the costs of the same will be passed onto the waste submitter/receiver.
    - The Haulier is responsible for management of the load including safe transit.
7. **Delivery**
    - A Receiver of material having material delivered to their site must ensure that access to the site is available 1 hour prior to and 1 hour post the specified delivery time to allow for a variation in road conditions of the Haulier.
    - If upon delivery, the receiver wishes to raise an issue with the material, they must contact the submitter via the Green Cycle platform.
    - The Haulier is responsible for unloading during the allocated delivery time upon arrival at the end customer.
    - Where the Haulier cannot enter the receiver's site due to a fault of him, receiver will be responsible for any further cost.
    - If an unloading slot is missed at the fault of the transport provider, the receiver is responsible for taking this issues.
    - Proof of delivery to be provided to by the haulier to green cycle.

8. **Misuse of Green Cycle**
    - Both parties will undertake as best as possible to adhere to any arrangements made between themselves and other users of the platform and understand that, whilst Green Cycle is not liable for any failure on the part of the Haulier, poor service may be a reflection on Green Cycle.

- Green Cycle reserve the right to claim damages on an indemnity basis for any misused deeds, functions and works that affect the green cycle Company reputation that might be happened by the platform users.

9. **Shipping, Documentation & Carrier Liability**
    - In the event that any shipment is short shipped, partially loaded, or divided across multiple sailings or Bills of Lading ("BL") due to any error, omission, or operational issue on the part of the carrier, shipping line, freight forwarder, port, or terminal operator, Green Cycle shall bear no liability whatsoever for any resulting costs, surcharges, storage fees, or administrative charges.

- Where Green Cycle has expressly instructed that all containers are to be shipped under a single BL, and the carrier or its agent:

    1. issues multiple BLs contrary to the booking instructions;
    2. fails to load one or more containers as booked; or
    3. otherwise deviates from the agreed shipping arrangement,

4. any additional costs or charges, including, but not limited to, documentation or amendment fees, additional BL issuance costs, demurrage, detention, storage, port charges, or destination handling fees, shall remain the sole responsibility of the carrier, freight forwarder, or other contracting party arranging the freight.

- Green Cycle shall not be liable for any delay, loss, damage, or consequential cost incurred by the consignee, purchaser, or any third party as a result of such acts, omissions, or errors by the carrier, port, or terminal.

- Green Cycle shall not be liable for any errors, omissions, misrepresentations, or deviations committed by the ocean carrier, freight forwarder, port operator, or any of their agents, subcontractors, or representatives, including but not limited to:

    1. incorrect, incomplete, or inconsistent documentation issued by the carrier (including errors in BL details, container numbers, routing, or cargo description);
    2. mis-stowage, misrouting, or transshipment errors;
    3. vessel omissions, rollovers, re-scheduling, or other operational alterations; and
    4. delays, storage, demurrage, or additional charges arising from carrier-imposed surcharges, documentation amendments, congestion, or any operational handling outside Green Cycle’s reasonable control.

- In all such cases, any financial or operational impact arising from carrier or port error shall be the sole responsibility of the waste receiver as well as carrier, freight forwarder, or the contracting party arranging the freight. Green Cycle shall have no duty to indemnify, reimburse, or compensate any other party for any losses, costs, or expenses incurred as a result of such occurrences.

- Green Cycle’s responsibility is limited to the coordinating between waste submitter and waste receiver. Risk in the materials shall pass to the waste receiver. Green cycle does not act as a carrier, freight forwarder, or agent of the carrier, and shall not be responsible for any act, omission, delay, loss, or damage arising from the handling, carriage, storage, or delivery of the waste materials by any third party. All carriage, documentation, and port operations are undertaken entirely at the risk of the carrier or the contracting freight party. Nothing in these Terms shall exclude or limit Green Cycle’s liability for death or personal injury caused by its negligence, or for fraud or fraudulent misrepresentation.

10. **Termination**
    - Green Cycle may at its sole discretion elect to terminate the agreement at any time (without prejudice to accrued rights) by immediate written notice, if any party is in breach of any obligation under the platform procedures and fails to remedy the breach within a reasonable time of written notice requiring it to do so.
    - Green Cycle may by giving written notice, terminate the agreement if the Haulier allows itself to suffer distress or execution or is the subject of a bankruptcy order or becomes insolvent or goes into liquidation, or enters into an arrangement or composition with creditors or if a receiver is appointed over any part of its business or assets.
    - The termination of the agreement howsoever arising is without prejudice to the rights, duties and liability of either party accrued prior to termination.
    - The conditions which expressly or impliedly have effect after termination will continue to be in force notwithstanding termination.

11. **Effects of Termination**
    - Upon the termination of the Agreement for any reason:

1. any sum owing by either party to the other under any of the provisions of the Agreement shall become immediately due within 30 days;
2. all Clauses which, either expressly or by their nature, relate to the period after the expiry or termination of the Agreement shall remain in full force and effect;

- Termination shall not affect or prejudice any right to damages or other remedy which the terminating Party may have in respect of the event giving rise to the termination or any other right to damages or other remedy which any Party may have in respect of any breach of the Agreement which existed at or before the date of termination.
- Each Party shall immediately cease to use, either directly or indirectly, any Confidential Information, and shall immediately return to the other party any documents in its possession or control which contain or record any Confidential Information other than that which:

1. At the date of disclosure or becomes at any time after that date publicly known;
2. can be shown by the Haulier to Green Cycle satisfaction to have been known by the Haulier before disclosure by Green Cycle;
3. is or becomes available to the Haulier otherwise than from Green cycle and free of any restrictions as to its use or disclosure;
4. is required to be disclosed by law.

1. **GENERAL PROVISIONS**

The following General Provisions are applicable to the entirety of these Terms and Conditions.

1. **Liability and Indemnity**

- Green Cycle liability under these Terms and Conditions, and in breach of statutory duty, and in tort or misrepresentation or otherwise, shall be limited as set out in this section.
- Green Cycle are not liable (whether caused by our employees, agents or otherwise) in provision of the Site or transportation of materials or the performance of any of our other obligations under these Terms and Conditions;

1. any indirect, special, or consequential loss, damage, costs, or expenses; or
2. any loss of profits; loss of anticipated profits; loss of business; loss of data; loss of reputation or goodwill; business interruption; or other third-party claims; or
3. any failure to perform any of our obligations if such delay or failure is due to any cause beyond the Waste submission reasonable control.

- The haulier must indemnify the both parties against all damages, costs, claims and expenses suffered arising from any loss or damage to any equipment, materials or property (including that belonging to third parties) caused by the Transport provider, agents or employees of the supplier.
- Green Cycle is not reposnbile in any faulty issues and accidents happened during the process of waste submissions between the submitter and the receiver that lead to death or personal injury.

2. **Data Protection and Confidentiality**

- For more information about how we obtain and use your data, please refer to our Privacy Policy which can be freely accessed on the Green Cycle platform.

2. **Force Majeure**

- If any process through the Waste submission via platform site is cancelled on the basis of circumstances beyond the reasonable control of Green Cycle including, but not limited to, any act of God, exceptional severe weather, failure or shortage of power supplies, flood, drought, tempest, lightening or fire, protests, strike, lock-out, trade dispute or labour disturbance, war or military operations, explosion, an act of terrorism, national or local emergency, anything done by government or other competent authority or industrial disputes of any kind (including those involving the suppliers employees or subcontractors), delay or failure by third parties (each a ‘Force Majeure Event’), Green Cycle will not be liable for any loss or damage which may be suffered by any party.

- Where the any party cancels, any haulier charges will be passed to the receiver for payment.

2. **Communications**

- All notices under these Terms and Conditions must be contacted through the platform and can be also in writing and signed by, or on behalf of, the party giving notice (or a duly authorized officer of that party).
- Notices shall be deemed to have been duly given:
    2. when delivered, if delivered by courier or other messenger (including registered mail) during the normal business hours of the recipient;

1. when sent, if transmitted by fax or email and a successful transmission report or return receipt is generated;
2. on the fifth business day following mailing, if mailed by national ordinary mail; or
3. on the tenth business day following mailing, if mailed by airmail.

- All notices under these Terms and Conditions must be addressed to the most recent address or email address notified to the other party.

- **No waiver**

- No delay, act or omission by a party in exercising any right or remedy will be deemed a waiver of that, or any other, right or remedy nor stop further exercise of any other right, or remedy.

5. **Law and jurisdiction**

- This Agreement shall be governed by and interpreted according to the law of Kuwait and all disputes arising under the Agreement (including non-contractual disputes or claims) shall be subject to the exclusive jurisdiction of the Kuwaiti courts.

Anti-Slavery & Human Trafficking

1. Green Cycle are proud to be committed to combatting modern slavery and human trafficking and remain vigilant towards materials supplied outside of the Kuwait and supply chains having an increased risk of slavery/human trafficking involvement.
2. Green Cycle will endeavor to monitor the Users of the platform for any signs that Users may be involved in modern slavery or human trafficking, however, in order to ensure utmost vigilance, Green Cycle requires the assistance of its Users.
3. If any Users of Green Cycle have concern that other Users may be involved in the practice of modern slavery or human trafficking, it is requested that the User either:

1. Inform Green Cycle immediately so that they can take action.
2. Call the department in charge in Kuwait.